

Court No. - 29

Case :- CRIMINAL MISC. WRIT PETITION No. - 16278 of 2014

Petitioner :- Mukesh Tomar

Respondent :- State Of U.P. Thru Home Secy. And 3 Others

Counsel for Petitioner :- S.K. Mishra

Counsel for Respondent :- Govt. Advocate

Hon'ble V.K. Shukla, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner, learned AGA for the State.

Petitioner has approached this Court with a request to quash the FIR dated 09.03.2014 registered as Case Crime No. 89 of 2014 under Section 135 of the Electricity Act, Police Station Pilkhuwa, District Hapur.

This Court has the occasion to peruse the FIR and the FIR in question does disclose a cognizable offence, in view of this, there is no occasion for this Court to quash the FIR, as has been prayed on behalf of petitioner, as such, prayer made on the said score is refused by this Court.

Learned counsel for the petitioner contended that the offence in question, as has been alleged to have been committed by the petitioner, is under Section 135 of the Electricity Act and for the same, even if the charges are found to be proved sentence of more than 7 years cannot be awarded and, in view of this, mechanically arrest should not be effectuated by the police personnel. Learned counsel for the petitioner next contended that the offence in question, as has been alleged to have been committed by the petitioner, is compoundable also.

The fact of the matter is that till date arrest has not been effectuated and this is mere apprehension of the petitioner that he would be arrested in breach of provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C. Once there is statutory provision provided for then it is always expected that the said provisions would be adhered to and in case there is any violation of the same, complaint can also be made before the Magistrate concerned to remedy the situation and if petitioner's offence is compoundable, he may seek his remedy, as provided, under the provisions of Electricity Supply Code, 2005.

In view of the above, it is hereby directed that in case arrest of petitioner is to be effectuated and the offence, in which he is wanted, will not entail sentence of more than 7 years then in that event concerned police personnel should deal with the matter in compliance of the provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C.

Writ petition stands disposed of.

Order Date :- 16.9.2014/T.S.